

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ECUADOR

Complete Community Opposition How-To

This guide uses the Ecuadorian terms and bodies you'll actually run into — the environmental licence and the EIA, the acción de protección, the rights of nature, consulta and the Constitutional Court — and explains each in plain words the first time. Ecuador's constitution gives communities a tool almost no other country has: enforceable rights of nature.

INTRODUCTION & FRAMEWORK

Hold onto one fact before anything else, because it's true and it's uniquely Ecuadorian: **a court once stopped a mine not because it harmed people, but because it harmed a forest — and the forest had rights of its own.**

That's the record of **Los Cedros**. When the state mining company ENAMI EP and its Canadian partner were granted concessions to dig in the Los Cedros cloud forest — a place of extraordinary biodiversity in the northern Andes — the fight began as humbly as they come: a **constitutional protective action (acción de protección)** filed by the small municipal government of Santa Ana de Cotacachi. It ended, in 2021, as one of the most cited environmental rulings of the century. Ecuador's **Constitutional Court** held that the concessions violated the **rights of nature** — the enforceable constitutional rights of forests, rivers, and ecosystems to exist and regenerate — **revoked the environmental permits, and prohibited the mining.** The court established that in Ecuador nature itself holds rights a project must respect, anywhere in the country. A humble local lawsuit protecting a forest became a landmark that now shields every ecosystem in the nation.

And Ecuadorians have done the same thing at the ballot box. On **20 August 2023**, after a decade of campaigning by the collective **Yasunidos**, a national referendum asked whether the oil beneath **Block 43 (the ITT), inside Yasuní National Park** — one of the most biodiverse places on Earth, home to peoples living in voluntary isolation — should stay in the ground. Nearly **59% said yes: leave it underground, and dismantle the operations.** The same day, close to **68% of Quito's voters rejected mining in the Chocó Andino.** Two treasured places, defended not by a minister but by ordinary citizens who organised, gathered signatures, and voted.

Now the honest counterweight. Ecuador's state promotes mining and oil hard; the government has resisted and delayed implementing even the Yasuní result; participation is often run as a formality; and defenders have faced pressure and danger. But no community anywhere has a legal tool quite like Ecuador's: **nature has enforceable rights, and any person can go to court to defend them.** That is the most powerful fact in this guide.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Ecuadorian project needs its **environmental licence**, resting on an EIA with **participation**; where it affects Indigenous peoples it needs **consulta**; it must respect the **rights of nature** any person can enforce; it can be frozen by an **acción de protección**; and on the biggest questions it can be put to a **referendum**. Every

one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If the project harms a forest, river, or ecosystem, the rights of nature are your sharpest, most distinctive lever** — Los Cedros revoked permits and prohibited mining on exactly this ground.
- **If a right or the participation was violated, the acción de protección is fast** — and reaches the Constitutional Court.
- **If the state backs it, an outright stop is hard, and a win must be defended** — the government has dragged its feet even on the Yasuní referendum result, so plan for endurance and enforcement.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the participation, consulta, the rights of nature, the acción de protección — and **run every front at once**: the documents, the participation, the courts, the movement, the press. That's how Los Cedros and Yasuní were won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **environmental licence**, issued by the environment ministry on the basis of an EIA. **Sector ministries** (mining, energy) grant the concessions and permits. On Indigenous lands, **consulta previa** engages the affected peoples. And above all of them sit the **rights of nature** and the constitutional rights that the courts — up to the **Constitutional Court** — enforce, and which any person can invoke. Know which decision you can contest — and remember the rights-of-nature argument runs through all of them.

How a Project Moves — and Where You Jump In

The EIA and participation. The developer prepares the EIA; there's a **social/environmental participation** process. *Your opening* — and it arms every later step: take part, put your objections on the record, and insist the participation is genuine.

Consulta (on Indigenous lands). Where Indigenous peoples are affected, consulta is required. *Your opening*: a project that skipped or botched it is on weak ground.

The licence and concessions. The ministry licenses the project. *Your opening*: a licence that violates the rights of nature or a defective EIA can be revoked — by an acción de protección.

Construction and operation. *Your opening*: harm to nature and breaches — and, on the biggest questions, a referendum.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company records set the exposure. **What it still needs** — the licence not final or under challenge, consulta not done, financing not closed: whatever's missing is the soft spot. **Who's paying** — banks and investors with their own environmental and human-rights standards.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment ministry** runs the licence and can be pressed. The **courts** hear the **acción de protección** and enforce the **rights of nature**, up to the **Constitutional Court** — the Los Cedros route. The **Defensoría del Pueblo** (Ombudsman) investigates and can bring actions. The **electorate** itself can decide the biggest questions by referendum. And Ecuador's **strong Indigenous movement (CONAIE and others)**, **its environmental collectives**, and **a free press** are the forces that reach furthest — the combination that carried Los Cedros and Yasuní.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether the rights of nature or Indigenous rights are engaged, whether participation was genuine, and how set the state is on the project.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Participation / objections in the EIA	15–35%	during assessment	low	On record; conditions or a redo
Acción de protección (rights of nature)	30–55%	months–2 yr	low	Permits revoked; project prohibited (Los Cedros)
Consulta (skipped/botched)	25–50%	varies	low	Project stalled pending consultation
Constitutional Court ruling	30–55%	1–3 yr	low	Landmark; project struck down
Referendum / consulta popular	30–55%	varies	mod	A question decided by the vote (Yasuní)
Movement + national/international media	30–55%	months–yr	low	Political cost; project reconsidered
Everything together (rights of nature, world watching)	40–65%	1–4 yr	low–mod	Revoked, prohibited, delayed, changed
Everything together (state-backed, clean process)	20–45%	years	low–mod	Delayed, conditioned, exposed

The lever that moves the needle most is the **rights of nature via the acción de protección**, backed by consulta, the referendum, and the movement. Los Cedros shows the ceiling (a mine prohibited to protect a forest's own rights) and Yasuní the second ceiling (oil left underground by popular vote). The honest floor is a state-backed project the government drags its feet on even after a loss — so plan to defend a win.

*On cost: participating, documenting, and organising are cheap, and the **acción de protección is fast, accessible, and can be filed by anyone** to defend the rights of nature — a genuinely unusual advantage. Indigenous federations and environmental collectives bring standing and strength.*

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this licence, this ecosystem, this right — is strong. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the boundaries and lay them over the **ecosystems it would harm — forests, rivers, páramo, cloud forest** — and Indigenous territory, protected areas, and communities. **The harm to nature itself is your sharpest lever**, so document the ecosystem carefully — Los Cedros turned on a cloud forest's biodiversity.
- 3. What stage is it at, and what's the next deadline?** Is the EIA in participation? Is consulta due? Has the licence issued (opening the acción de protección)? These openings are time-bound.
- 4. What does it still need that it lacks?** A licence not final, consulta not done, financing not closed. The missing piece is the soft spot.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, the Indigenous federation, environmental collectives, the municipality. Los Cedros began with a municipal government.

What this looks like in real life. A community learns a mine is planned in a cloud forest that feeds its rivers, near Indigenous land. The five questions yield: a state or foreign company behind it; a site harming a biodiverse ecosystem (the rights-of-nature lever) near Indigenous territory (consulta); an EIA in participation with a licence pending; a project still needing that licence; and a coalition of communities, the federation, and a municipality. That's the Los Cedros pattern — document the ecosystem, and bring the acción de protección on the rights of nature.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and Los Cedros was won by documenting a forest's extraordinary life. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the EIA, the licence and its conditions, the concessions, the participation and consulta records. Ecuador's access-to-information rights let you demand what isn't public. Then read the EIA hard for flaws — an understated impact, an ignored alternative, a skipped consulta, a participation that never genuinely happened.

Layer two: the ground truth — and the life of the place. Dated, located photographs and video of the ecosystem, the forest, the rivers, the wildlife — and, crucially for a rights-of-nature case, evidence of the ecosystem's biodiversity and the threat to its ability to exist and regenerate. Baseline images before any damage matter most, alongside the testimony of affected residents.

Layer three: the map of nature and rights. Lay the project over the ecosystems it harms, Indigenous territory, and protected areas, so each lever — above all the rights of nature — is visible. Walking into court with the EIA, the licence, and that map is what makes it act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the licence and conditions, the concessions, the participation and consulta records** — from the environment and sector ministries; force out the rest under the access-to-information rules (8A).
- **Ecosystem and biodiversity evidence** — from scientists, universities, and the community's own observation.

- **Indigenous and community records** — from the federation and the community's structures.
- **Ownership and financing** — company and investor records.
- **The nature-and-rights map** — ecosystems harmed, Indigenous territory, and protected areas, laid over the site.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Ecuador's Indigenous and environmental movements are among the most powerful in the Americas. Build your coalition in four moves.

Start with a tight core. The neighbours most affected, the people who know the land and rivers, a few tireless organisers, and respected local figures.

Widen the circle — and win over your local government. Los Cedros began with a municipal government's lawsuit; a municipality or parish on your side is a powerful ally that can file its own acción de protección. Widen to neighbouring communities and the wider public.

Centre Indigenous leadership where it applies. Where Indigenous territory and consulta are engaged, the Indigenous peoples and federations (CONAIE and its regional bodies) hold the strongest ground; build the campaign around supporting that leadership, at their direction.

Bring in the scientists and lawyers — early. Reach the environmental lawyers who run rights-of-nature cases and the scientists who can document the ecosystem's biodiversity (decisive at Los Cedros). The acción de protección is accessible enough that a supported community can bring its own.

Build to last, and defend the win. Ecuadorian fights run for years, and — as Yasuní shows — a win must be enforced. Build clear roles, a secure shared archive, a way to decide together, a plan for the financial and emotional toll, and a plan to guard a victory the state may resist.

STEP 4: LEGAL CHALLENGES, THE RIGHTS OF NATURE & CONSULTA

Law is Ecuador's sharpest lever, because of a tool almost no other country has: enforceable rights of nature, defensible by anyone.

The Rights of Nature and the Acción de Protección

Ecuador's signature tool is the **rights of nature (derechos de la naturaleza)** — the constitutional rights of ecosystems to exist, persist, and regenerate — enforced through the **acción de protección**, a fast constitutional action **anyone can file**. This is the Los Cedros route: the Constitutional Court held that mining concessions violated a cloud forest's rights, **revoked the permits, and prohibited the mining**. Frame the harm not only as damage to people but as a violation of the ecosystem's own rights, and bring the acción de protección to defend them. It's fast, accessible, and — uniquely — the ecosystem itself is the rights-holder.

The Constitutional Court

The **Constitutional Court** can select and rule on cases of national importance, and its rulings bind the whole country — Los Cedros became a precedent shielding every ecosystem. A strong case, well documented, can climb to it.

Consulta and the Referendum

Where Indigenous peoples are affected, **consulta previa** (ILO 169) is required, and the Constitutional Court has also strengthened **environmental consultation** for affected communities generally. A skipped or botched consulta is a ground. And for the biggest questions, remember the **referendum (consulta popular)** — Yasuní and the Chocó Andino were decided by the vote. A community or collective can gather signatures to put a question to the people.

The Honest Limits

Straight talk: the rights of nature and the acción de protección are powerful and unique, but litigation is slow, the state promotes extraction hard, participation is often a formality, and — the Yasuní lesson — the government may resist enforcing even a clear loss. So use the strong tools — participation, consulta, the rights of nature, the referendum — but pair them with the movement and the press, plan to defend a win, and count revoked permits, a prohibited project, forced consulta, delay, and a referendum result as wins alongside a clean, enforced stop.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Harm to nature becomes a rights violation. Not "the mine is bad" but *"this destroys a cloud forest's ability to exist and regenerate — a violation of the rights of nature, as at Los Cedros."*

A right becomes a fast freeze. *"Our consulta was never held / a fundamental right is threatened — we ask the court to stop it by acción de protección."*

A question becomes a vote. *"This treasure should be decided by the people — as Yasuní and the Chocó Andino were."*

The harm becomes a public story. *"The forest, the rivers, the life our community has always known — for a project we were never truly asked about."*

Match it to the venue: the objections to the ministry; the rights-of-nature and consulta violations to the acción de protección; the national question to the referendum; the human and the ecosystem to the press.

STEP 5: MEDIA STRATEGY

In Ecuador, national and international attention is a real lever — Los Cedros and Yasuní became global causes. A free press, powerful movements, and the world's interest in Ecuador's biodiversity make the media front central.

Lead with people and place, not procedure. Not "the licence was defective" but "the cloud forest, the rivers, the life our community has always known — for a project we were never truly asked about." Use your strongest material: dated photographs, the biodiversity of the ecosystem, the map of the project over it, and — carefully — human testimony.

Work several audiences at once. Local and national press build political pressure; the Indigenous and environmental movements amplify; international media reach the world's stake in Ecuador's biodiversity and the company's investors. Make it easy: captioned photos, accurate summaries, a map, strong voices.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — get legal advice before any direct action.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies.

8A — Access-to-information request (to the environment ministry).

Subject: Solicitud de información ambiental — [proyecto].

"Under the access-to-information rules, we, residents of [place], request the EIA, the environmental licence and its conditions, the concessions, and the participation and consulta records for [project] at [location]. [Contact.]"

8B — Objection in the participation.

Subject: Observaciones — participación ambiental de [proyecto].

"We, residents of [place], oppose the licensing of [project]: [it harms this ecosystem and its rights of nature; consulta was required and skipped; participation never reached us]. We ask that the licence be refused. [Attach evidence.]"

8C — Acción de protección (rights of nature).

Subject: Acción de protección — derechos de la naturaleza — [proyecto].

"We file this acción de protección because [project] violates the rights of nature of [the named ecosystem] to exist and regenerate, and [our consulta / a fundamental right]. We ask the court to revoke the permits and prohibit the project. [Attach evidence and the ecosystem's biodiversity.]"

8D — To an environmental lawyer / collective.

Subject: Petición de apoyo — [proyecto] en [lugar].

"Our community faces [project], which threatens [a biodiverse ecosystem / our rivers / Indigenous land]. We've gathered [the EIA, the licence, the biodiversity evidence, photographs] and believe there are grounds on the rights of nature and consulta. We ask for your help and to work as partners. [Contact and evidence summary.]"

8E — To a financier or investor.

Subject: Riesgo ambiental, de derechos y legal — [proyecto].

"We understand your institution may be financing [project] at [location], which [violates the rights of nature / proceeds without consulta / faces active legal challenge]. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8F — Letter to the press.

Subject: [Community] moves to protect [forest / river / ecosystem] from [project].

"For generations the people of [place] have lived from [the forest / the rivers] at [location] — a place of extraordinary life. Now [project] threatens it. We can provide photographs, the ecosystem's biodiversity, a map and interviews. [Contact.]"

8G — Launching a referendum drive (to the community).

Subject: Let the people decide on [project].

"[Project] threatens [our treasured place]. As Ecuadorians did for Yasuní and the Chocó Andino, we can gather signatures to put this to a popular vote. Please join the signature drive. [Contact.]"

8H — Rallying the community.

Subject: We can stop this — here's how.

"[Project] threatens [our forest / rivers / ecosystem]. At Los Cedros, a humble local lawsuit stopped a mine because the forest itself has rights — and at Yasuní, the people voted to leave the oil underground. With the rights of nature, the acción de protección, consulta, and the movement behind us, we have a real chance. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order:

1. **Nail down the project and the ecosystem it harms.** The harm to nature itself is your sharpest, most distinctive lever.
2. **Take part in the participation and object (8B); on Indigenous land, demand consulta.**
3. **Request the documents (8A), and gather the ecosystem's biodiversity evidence.**
4. **Photograph everything, with dates and places.** Baseline images before any damage matter most.
5. **File an acción de protección on the rights of nature (8C) with a lawyer (8D).** It's fast and reaches the Constitutional Court.
6. **Build the movement and go public (8F/8H) — and consider a referendum (8G).** Los Cedros and Yasuní show both routes work.

Even lean, those six use your rights, build the record, hit the rights-of-nature lever, and start a coalition.

WHEN THE SYSTEM IS TILTED

Ecuador's tools are real, but the field is often tilted, and you must plan for it.

When the state backs extraction. The government promotes mining and oil hard. Don't fold: use the rights of nature, consulta, and the acción de protección, keep the movement alive, and make the state's backing of a harmful project a public cost.

When a win isn't enforced. This is the Yasuní lesson: the government has dragged its feet even on a referendum result. Guard your win — keep the pressure on, return to the courts to compel enforcement.

When participation is a formality. A token process is not participation. Document the sham — it's a ground.

When defenders are pressured. Take threats seriously, protect the vulnerable, work through lawyers and the Defensoría, and use national and international attention as protection.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Ecuador has serious, documented problems with the capture of permits and concessions, so this matters.

How to spot it. Licences against the evidence; an EIA written for the proponent; participation or consulta engineered to exclude; concessions steered to the connected; benefits to a few while the community carries the harm.

Who's supposed to guard against it. The **Comptroller (Contraloría)** examines public money. The **Fiscalía** handles graft and environmental crime. The **Defensoría del Pueblo** investigates. The **courts** can revoke a tainted licence on the rights of nature or otherwise. And Ecuador's **investigative press** has exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Contraloría, the Fiscalía, and trusted journalists rather than making accusations you can't back. Pair the exposure with the legal challenge and the public campaign.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together. The documents and the ecosystem evidence build your proof; pinning down the rights-of-nature harm aims it; organising builds the muscle; the acción de protección presses the case; the media raises the cost. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, the ecosystem it harms, and any Indigenous land; take part and object; demand consulta; request the records and gather biodiversity evidence; get a lawyer and win over your local government.

In the thick of it (months–years): file an acción de protección on the rights of nature; press consulta; consider a referendum drive; deepen the coalition and the scientific case; open the media front.

The long haul (years): carry the case to the Constitutional Court; keep the movement and the attention alive; hold the line for revoked permits, a prohibited project, forced consulta, a referendum result, or an outright stop — and defend the win against a foot-dragging state.

FINAL ASSESSMENT

Stopping a destructive project in Ecuador can be done — a humble local lawsuit stopped a mine because a cloud forest has rights of its own, and a national referendum left Yasuní's oil in the ground. Hold both truths. Ecuador's tools are real and, in one respect, unique in the world: enforceable rights of nature, defensible by anyone through a fast acción de protección; a Constitutional Court whose rulings bind the country; consulta on Indigenous lands; and a referendum the people have used to protect treasured places. And the constraints are real: a state that promotes extraction, formalistic participation, and a government that may resist enforcing even a clear loss.

Here's the discipline that wins. Document the ecosystem and the harm to its own rights, and pry loose the record. Take part and object, and demand consulta where it applies. File an acción de protección on the rights of nature — the Los Cedros route — and take a strong case to the Constitutional Court. Consider a referendum for the biggest questions. Build your coalition around Indigenous and municipal leadership, carry the story to the world — and be ready to defend a win the state may resist. Count revoked permits, a prohibited project, forced consulta, a referendum result, and an enforced stop as wins. That's what Los Cedros and Yasuní did — the rights of nature, the courts, and the people together. So can you.